

Ajay Kumar v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 5 April 2023 · Writ - C No. 8785 of 2023 · **Writ disposed; liberty to file section 127 appeal**

HEADNOTE

Once a final assessment order dated 23 March 2023 was on record, the writ seeking quashing of a 27 June 2006 notification and a decision on a clause 8.1 representation was disposed of with liberty to challenge the assessment by a statutory appeal under section 127. The 5 April 2023 order had named the U.P. Electricity Supply Code, 2005; a correction dated 31 May 2024 directs that this be read as the Electricity Act, 2003.

FACTUAL SUMMARY

Ajay Kumar filed a writ against the State of U.P. and another, seeking quashing of a notification dated 27 June 2006 and a mandamus that the electricity respondent decide his representation under clause 8.1 of the U.P. Electricity Supply Code, 2005. On 21 March 2023 the Department was granted time to obtain instructions. A supplementary affidavit annexed a final assessment order dated 23 March 2023, and the writ was heard again on 5 April 2023. A correction application in the writ was decided on 31 May 2024.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

statutory appeal against a final assessment

HOLDING

Where a final assessment has already been made, a writ seeking quashing of a notification and a mandamus to decide a representation under clause 8.1 of the U.P. Electricity Supply Code, 2005 is disposed of with liberty to challenge that assessment by a statutory appeal under section 127, if so advised. The appeal is under the Electricity Act, 2003; the order of 5 April 2023 had cited section 127 of the Supply Code, 2005, and the correction order of 31 May 2024 directs that the Act be read in its place. ¶ 1-2

FLAG 5 April 2023 order cited s.127 of the U.P. Electricity Supply Code, 2005; 31 May 2024 correction reads the Electricity Act, 2003

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal The final assessment order of 23 March 2023 being already on record, the writ was disposed of with liberty to challenge that assessment under section 127, if so advised. The 31 May 2024 correction reads the appeal as one under the Electricity Act, 2003. ¶ 1-2

relegation-to-section-127-appeal-on-merits-limitation-not-examined The Court did not examine the assessment, the 27 June 2006 notification, the clause 8.1 representation, or limitation. It only reserved liberty to file the section 127 appeal. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE NOTIFICATION DATED 27 JUNE 2006

The quashing prayer was not examined. The writ was disposed with liberty to appeal the final assessment. ¶ 1-2

NOT DECIDED — MERITS OF THE FINAL ASSESSMENT DATED 23 MARCH 2023 AND OF THE CLAUSE 8.1 REPRESENTATION

Left to a section 127 appeal if the petitioner is so advised. Limitation was not examined. ¶ 1-2

NOT DECIDED — REMAINDER OF CIVIL MISC. CORRECTION APPLICATION NO. 1 OF 2023

The application was only partly allowed. The order records solely the substitution of the Electricity Act, 2003 for the Supply Code, 2005. ¶ 1-2

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.